

Privacy Policy

Your privacy is important to us. This Privacy Policy applies to this website (preferredequineonline.com) (the “Website”) and all services provided through the Website, including without limitation, all mobile, tablet and other smart device applications and application program interfaces and associated services (collectively, the “Service”). Preferred Equine Online, LLC, the operator of this website (“we”, “us”, “our” or “Preferred Equine”) provides this Privacy Policy to disclose how we collect and use information that you provide to us, as well your rights to access, update and delete your data. To that effect, this Privacy Policy covers the following topics:

- ☐ What Data Do We Collect?
- ☐ How Will We Use Your Data?
- ☐ How Do We Share Your Data?
- ☐ How Do We Store Your Data?
- ☐ What Are Your Data Protection Rights?
- ☐ Other Terms & Conditions.
- ☐ Contact Us.

Please read this Privacy Policy carefully and contact us with any questions at any time. You acknowledge that this Privacy Policy is part of our Terms and Conditions of Use, and by accessing or using our Service, you agree to be bound by all of its terms and conditions. If you do not agree with the terms, your choice is not to use our Service. By using the Service, you consent to all of the terms and conditions of this Privacy Policy and our collection, storage, use and disclosure of your information as described in this Privacy Policy. **If you would like to exercise any of the rights available to you with respect to the collection, processing and storage of your personal information please send us an email communication with your specific request to: online@preferredequine.com.**

What Data Do We Collect?

- ☐ Information You Choose to Provide. We collect and store any information that you enter on the Service or provide to us in any other way. Examples include: your name, mailing address and email address; your phone number or fax number; unique identifiers such as a user ID or password; or demographic information, such as your date of birth or age.
- ☐ Information from Mobile Devices. If you access the Service on a mobile device or through a mobile application, we may receive information about your equipment, including without limitation, your mobile device identifier and/or IP address, the name you have associated with your device, device type, telephone number, country and geolocation.
- ☐ Information from Social Networking Sites. If you access any aspect of the Service through a third-party social networking site (“SNS”), you allow us to access and import information from your profile for that SNS which may affect the privacy settings you establish on the SNS. You can find out more about these settings at the SNS. By using the Service through a SNS, you are authorizing us to collect, store and use any information that the SNS provides to us through its interface with the Breeders’ Cup. You agree to this when you “accept or “allow” one of our applications on the SNS.

- ☐ Payment Transaction Information. If you purchase an item through the Service, we may collect information related to your payment transactions, including the payment instrument used, date and time, payment amount, payment instrument expiration date and billing postcode, IBAN information, your address and other related transaction details.
- ☐ Automated Information Collection. We or our service providers may use automated technologies, which include, but are not limited to, “cookies” (text files placed by a Website’s server on a visitor computer hard drive) and similar technologies, such as “flash cookies” (local stored objects not managed by the same browser settings as browser cookies), “web beacons” (small electronic files also referred to as clear gifs, pixel tags, and single-pixel gifs that permit us to count users who have visited a page or opened an e-mail), and other identifiers to collect information about your use of the Service, the content you viewed, and information about your browser or device. For further information on automated data collection technologies, including how to remove them from your browser, visit the “What Are Your Data Protection Rights?” section of this Privacy Policy.
- ☐ Third Party Automated Information Collection. Some content or applications, including advertisements, on the Service are served by third-parties, including advertisers, ad networks and servers, content providers, and application providers. These third parties may use cookies alone or in conjunction with web beacons or other tracking technologies to collect information about you when you use our Service. The information they collect may be associated with your personal information or they may collect information, including personal information, about your online activities over time and across different websites and other online services. They may use this information to provide you with interest-based (behavioral) advertising or other targeted content. We do not control these third parties’ tracking technologies or how they may be used. If you have any questions about an advertisement or other targeted content, you should contact the responsible provider directly.
- ☐ Aggregate Information. We or our service providers may also use automated technologies to collect information that is not personally identifiable, such as information about your online activities across third-party websites or other online services, advertising, demographic and other analytic data.

How Will We Use Your Data?

Preferred Equine, our affiliates and third-party service providers may use, store, and process information collected as follows:

- ☐ To enable you to access the Service and/or your account on the Service.
- ☐ Process your bids/purchases and manage your account on the Service.
- ☐ To conduct and administer sales and keep proper records of those transactions.
- ☐ To enhance and develop your visitor experience on the website, such as by using cookies and similar technologies to recognize you and remember and automatically employ your previously selected preferences.
- ☐ To carry out our obligations and enforce our rights arising from any contracts entered into between you and us, including but not limited to providing access to the Service or to your account or billing and collection.
- ☐ To provide information or services you have requested.
- ☐ For marketing purposes, to ensure we provide content that is of interest to visitors of the Service.
- ☐ To allow you to participate in interactive features on the Service.
- ☐ To provide advertisers with aggregate information about our visitors and customers.

- ☐ To detect and prevent fraud, spam, abuse, security incidents, and other harmful activity.
- ☐ To conduct security investigations and risk assessments.
- ☐ To verify or authenticate information or identifications provided by you.
- ☐ To comply with our legal obligations.
- ☐ To resolve any disputes with any of our customers and enforce our agreements with third parties.
- ☐ To enforce our Terms of Use and other policies.
- ☐ To fulfill any other purpose that you might request upon you consenting to our use of your personal information or data for such purpose if possible.

We process your information for the purposes listed in this section given our legitimate interest in protecting our Service, to measure the adequate performance of our contract with you, to comply with applicable laws, and to further our legitimate interest in undertaking marketing activities to offer you products or services that may be of your interest.

How Do We Share Your Data?

We do not sell, trade, or rent your personal information to any third parties. We do publish the results of auctions/sales of horses on and through the Service, and by using the Service in connection with any such auction(s), you expressly consent to our use of your information by so publishing it on and through the Service. In addition, we may share your data with as follows:

- ☐ Service Providers. We may employ businesses and individuals to perform functions on our behalf. Any service provider employed on our behalf may have access to personally identifiable information needed to perform their functions. The typical functions a service provider may perform include, without limitation, fulfilling orders, site analysis, analyzing data, processing credit card payments and providing customer service.
- ☐ Aggregate Information. We may share aggregate information, such as demographics and site usage statistics, with advertisers, sponsors or other organizations. When this type of information is shared, the other parties do not have access to your personally identifiable information; however, we may maintain or associate this information with personal information about you that we collect from other sources or you provide to us.
- ☐ Partner Companies. We may share your information with our partner companies if we feel their products or services may be of interest to you. If you do not want us to use your information in this way, you may withdraw such consent at any time by sending us an email communication specifying the consent you are withdrawing. Please be aware that if you elect to provide your personally identifiable information in response to third party marketing offers or otherwise, all information you disclose will be subject to the privacy policy and practices of such third parties, and you should review these policies before providing your information.
- ☐ Transfers. In the event that our assets are sold or transferred to another party, or another transaction occurs in which your personally identifiable information is one of the business assets transferred, all personally identifiable information that has been collected and saved may be one of the business assets we transfer. We will post a notice on the Site in the event of such a transfer.
- ☐ Legal Compliance. We will disclose your personal information and any other information collected by the Service to law enforcement agencies and other third parties without notice to you if necessary to comply with applicable law, to investigate suspected fraud, harassment or other violations of applicable law or of our Service policies, to protect ours or a third parties' rights, or to protect the rights of other visitors.

- ☐ Third Party Ad Serving. Network advertisers are third parties that display advertisements based on your visits to this Service and other websites you have visited. Third-party ad serving enables us to target advertisements to you for products or websites in which you might have an interest. Such advertisers, sponsors and/or services may themselves set and access their cookies on your computer if you choose to have cookies enabled. Other companies' uses of their cookies are subject to their own privacy policies, not this one. If you click on or otherwise interact with an advertisement, the advertiser may assume that you meet its target criteria.
- ☐ When You Consent. Other than as described above, your personal information will not be used or processed without your express written consent.

How Do We Store Your Data?

We incorporate reasonable safeguards to protect the security, integrity, completeness, accuracy and privacy of the personal information that we may collect. We are continuously implementing and updating our administrative, technical and physical security measures to help protect your information against unauthorized access, loss, destruction, or alteration. We will retain your personal information for as long as your account is active or as needed to fulfill the purposes outlined in this Privacy Policy, unless a longer retention period is required or permitted by law.

What Are Your Data Protection Rights?

Every user of the Service is entitled to the rights set forth in this section. You may exercise any of the rights described in this section by sending us a communication with your request to online@preferredequine.com or by following any specific instructions listed below. Please note that we may ask you to verify your identity before taking further action on your request.

- ☐ Withdrawing Your Consent. Where you have provided your consent for us to process your personal information for any of the purposes set forth in this Privacy Policy, you may withdraw such consent at any time by sending an email specifying which consent you are withdrawing. Please note that the withdrawal of your consent does not affect the lawfulness of any processing activities based on such consent before its withdrawal.
- ☐ Marketing. If you have agreed to receive marketing or promotional materials from us or any of our affiliates or corporate partners, you may always opt out and indicate your desire to no longer receive such materials by sending us an email communication with your request. Upon receipt of your request, we will no longer contact you for marketing or promotional purposes, nor will we give your data to our affiliates or corporate partners for use in any similar manner.
- ☐ Tracking Technologies. You can set your browser to refuse all or some cookies and similar data collection technologies, or to alert you when cookies and similar technologies are being used. To learn how you can manage your cookie settings, visit your website browser's settings. If you disable or refuse cookies and similar tracking technologies, please note that some parts of this Service may be inaccessible or not function properly as a result.
- ☐ Third Party Tracking Technologies and Advertising. We do not control the manner in which third parties' may collect your personal information when you are using the Service. If you choose not to have your information collected or used by a third-party website or service, you may set your browser to refuse all or some cookies, pixels or similar automated data collection technologies. If you have any questions about an advertisement or other targeted content, you should contact the responsible provider directly. For more information on how to manage cookies, pixels and similar automated data collection technologies, visit the settings display in your web browser. In addition, you can opt out of receiving targeted ads from participating ad networks, audience segment providers, ad serving vendors, and other service providers by visiting websites operated by the Network Advertising Initiative and Digital Advertising Alliance.

- ☐ Objection to Processing. Applicable law may entitle you to require us not to process your personal information for certain specific purposes (including profiling). If you object to such processing, we will no longer process your personal information for these purposes unless we can demonstrate compelling legitimate grounds for such processing or such processing is required for the establishment, exercise or defense of legal claims.
- ☐ Data Access and Portability. You may request copies of personal information that you have provided to us in a structured, commonly used, and machine-readable format and/or request us to transmit this information to another service provider (where technically feasible).
- ☐ Rectification of Inaccurate or Incomplete Information. You have the right to ask us to correct inaccurate or incomplete personal information concerning you (and which you cannot update yourself within your account settings).
- ☐ Data Retention and Erasure. We generally retain your personal information for only as long as is necessary for the performance of the contract between you and us and to comply with our legal obligations. If you no longer want us to use your information, you can request that we erase your personal information and close any accounts created through the Service by sending us an email with your request. Please note that if you request the erasure of your personal information:
 - We may retain some of your personal information as necessary for our legitimate business interests, such as fraud detection and prevention and enhancing safety.
 - We may retain and use your personal information to the extent necessary to comply with our legal obligations, such as for tax, legal reporting and auditing obligations.
 - Because we maintain the Service to protect from accidental or malicious loss and destruction, residual copies of your personal information may not be removed from our backup systems for a limited period of time.
- ☐ Lodging Complaints. You have the right to lodge complaints about the data processing activities carried out by Preferred Equine to the appropriate data protection authorities.

If you would like to exercise any of these rights, please send us an email communication specifying which right you would like to exercise to: [EMAIL]

Other Terms and Conditions.

- ☐ Third Party Websites. The Service may contain links to third party websites that we do not control. When you click one of these links, the collection and use of your information will no longer be governed by the terms of this Privacy Policy. This may include links from advertisers, sponsors and marketing partners, and these third parties may use our logos as part of a sponsorship agreement. These other websites may send their own cookies to you, independently collect data or solicit personal information and may or may not have their own published privacy policies. If you visit a website that is linked to the Service, you should consult that website's privacy policy before providing any personal information. We do not have any control over third party websites and are not liable to you for any claims that may arise from your use of third-party websites.

- Information You Make Public. The Service, including pages available on our website through social networking sites, may have features that allow you to post information that can be viewed by other visitors, such as commenting, chat rooms, forums and message boards. You are not required to provide any personal information when using these features but you may choose to do so. If you post personal information online, it will be publicly available and you may receive unsolicited messages from other parties. In addition, when you post a comment to a mobile application, the user name with which you registered for the Service and your current location may be made publicly available on the Service and through the mobile application. We cannot ensure the security of any information you choose to make public using these features, and it may remain available indefinitely. Also, we cannot ensure that parties who have access to such publicly available information will respect your privacy. Please exercise caution when deciding to disclose personal information in these areas.
- Our Policies Concerning Children. Our Service is not intended for children under the age of 18 and we do not knowingly collect any personal information from children under the age of 18. In the event that we learn that we have inadvertently gathered personal information from a child under the age of 18, we will take reasonable measures to promptly erase such information from our records.
- Your California Privacy Rights. California Civil Code Section 1798.83 permits users of the Service who are California residents to request certain information regarding our disclosure of personal information to third parties for their direct marketing purposes. To make such a request, please send us an email communication in the manner set forth in the Contact Us Section of this Privacy Policy.
- Changes to this Privacy Policy. We reserve the right to amend, modify or update this Privacy Policy at any time in accordance with this provision. If we make changes to this Privacy Policy, we will take reasonable measures to notify you of the revised Privacy Policy on the Service and update the “Last Updated” date at the top of this Privacy Policy.

Contact Us.

If you have any questions about or comments regarding this Privacy Policy, or if you would like to exercise any your rights as set forth herein, please contact us at:

Telephone: 914-773-7777 Email: online@preferredequine.com

Any user of this Service may, at any time, contact us directly with questions and suggestions concerning the terms of this Privacy Policy. In the event of a privacy related issue or complaint, we will investigate and attempt to promptly resolve any issues and complaints regarding our collection and use of information under this Privacy Policy.

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